

FEDERAL MARITIME COMMISSION

DOCKET NO. 23-08

**MEDITERRANEAN SHIPPING COMPANY, S.A. – POSSIBLE VIOLATIONS OF THE
SHIPPING ACT, 46 U.S.C. §§ 41102(c), 40501, and 41104(a)(2)(A)**

**BUREAU OF ENFORCEMENT, INVESTIGATIONS, AND COMPLIANCE
MOTION FOR CONFIDENTIAL TREATMENT**

1. On August 15, 2023, the Administrative Law Judge (ALJ) in this proceeding issued an Initial Order. See FMC Docket No. 23-08, *Mediterranean Shipping Company, S.A.—Possible Violations of the Shipping Act, 46 U.S.C. §§ 41102(c), 40501 and 41104(a)(2)(A)* (ALJ August 15, 2023). Contained in the Initial Order are additional instructions. Paragraphs nos. 19–26 address confidential material. In compliance with the ALJ’s additional instructions, the Bureau of Enforcement, Investigations, and Compliance (BEIC) submits this motion.¹
2. On November 14, 2023, the parties in this proceeding agreed and stipulated between themselves treatment of confidential documents and information obtained during discovery that is not filed with the Commission. Per paragraph no. 19 of the ALJ’s additional instructions, a courtesy copy of the agreement for the Commission is included herein as Appendix A.

¹ Per 46 C.F.R. § 502.71(a) the parties discussed this motion via telephone on April 1, 2024. The motion was not opposed.

3. In this proceeding, BEIC's Office of Enforcement (OE) cites Respondent's confidential information in its briefing on the merits. Per paragraph no. 20 of the ALJ's additional instructions:

If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

4. BEIC makes this filing in compliance with the ALJ's Order and the parties' Confidentiality Agreement. In the table below, BEIC lists Respondent's confidential documents by Respondent's Bates numbers with a short description. BEIC does not advocate the legal basis for the information cited in the Confidentiality Request. All the information cited by BEIC was provided by the Respondent. The basis for the Confidentiality Request is the agreement between the parties.

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
MSC 0000004	Policy statement on delays in pick-up of cargo and return of equipment	Material indicated in PFF34	Per agreement
MSC 0000006	Tariff rates	Material indicated in PFF190-PFF192	Per agreement
MSC 0000027-0000033	Rules to assign invoice company	Material indicated in PFF24-PFF27	Per agreement

MSC 0000283- 0000288	E-mail, billing of non- operating reefers	Material indicated in PFF248-PFF256	Per agreement
MSC 00000383- 00000386	E-mail, billing of non- operating reefers	Material indicated in PFF215-PFF220	Per agreement
MSC 0000453- 0000457	E-mail, billing of non- operating reefers	Material indicated in PFF257-PFF260	Per agreement
MSC 0000587	E-mail, billing of non- operating reefers	Material indicated in PFF261-PFF262	Per agreement
MSC 0000611- 0000644	E-mail, billing of non- operating reefers	Material indicated in PFF265-PFF276, PFF287	Per agreement
MSC 0000733- 0000748	E-mail, billing of non- operating reefers	Material indicated in PFF221-PFF232, PFF288-PFF290	Per agreement
MSC 0000753- 0000755	E-mail, billing of non- operating reefers	Material indicated in PFF239-PFF244	Per agreement
MSC 0000765- 0000767	E-mail, billing of non- operating reefers	Material indicated in PFF236- PFF239	Per agreement
MSC 0000770- 0000778	E-mail, D&D Outstanding audit for billing accuracy.	Material indicated in PFF11, PFF208, PFF237-PFF239, PFF244-PFF245	Per agreement

MSC 0000822- 0000833	E-mail, billing of non- operating reefers	Material indicated in PFF233-PFF235	Per agreement
MSC 0000838- 0000846	E-mail, billing of non- operating reefers	Material indicated in PFF210-PFF214	Per agreement
MSC 0000283- 0000288	E-mail, billing of non- operating reefers	Material indicated in PFF249-PFF247	Per agreement
MSC 0000973	E-mail billing of non-operating reefers	Material indicated in PFF246-PFF247	Per agreement
MSC 0001015- 0001027	E-mail billing of non-operating reefers	Material indicated in PFF263-PFF264	Per agreement
MSC 0001149- 0001151	E-mail billing of non-operating reefers	Material indicated in PFF278-PFF282	Per agreement
MSC 0001436	Invoice	Material indicated in PFF168	Per agreement
MSC 0002046	Invoice	Material indicated in PFF157	Per agreement
MSC 0002699- 0002705	Billing procedures	Material indicated in PFF22-PFF23	Per agreement
MSC 0003603	Invoice	Material indicated in PFF147	Per agreement
MSC 0004330	Invoice	Material indicated in PFF177	Per agreement
MSC 0004331	Invoice	Material indicated in PFF185	Per agreement

MSC 0004508	E-mail, billing issue	Material indicated in PFF126	Per agreement
Not Applicable	MSC response to Office of Enforcement's Third Interrog.	Material indicated in PFF202, PFF277, PFF283	Per agreement

5. Any materials containing, reproducing, incorporating, or paraphrasing confidential material or exhibiting personal information will be filed and labeled in accordance with paragraph nos. 22-25 of the ALJ's additional instructions.
6. For the foregoing reasons, BEIC requests that the foregoing information be kept confidential and not disclosed to the public.

Dated: April 3, 2024

Respectfully submitted,

Theron R. Korsak

Digitally signed by Theron R.
Korsak
Date: 2024.04.03 10:09:28 -04'00'

Julie L. Berestov, Director
Theron R. Korsak, Trial Attorney
Serena L. Tang, Trial Attorney
Office of Enforcement
Bureau of Enforcement, Investigations, and
Compliance
Federal Maritime Commission
800 N. Capitol St., N.W.
Washington D.C. 20573
(202) 523 5783
jberestov@fmc.gov
stang@fmc.gov
tkorsak@fmc.gov

CERTIFICATE OF SERVICE

I hereby certify that on this **3rd day of April, 2024** a copy of the foregoing has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

Serena L. Tang

Wayne R. Rohde
wrohde@cozen.com

Kathryn Sobotta
ksobotta@cozen.com

Rachel Schwartz
rschwartz@cozen.com

Cozen O'Connor
1200 19th Street NW
Washington, DC 20036
(202) 463-2507

Presiding Administrative Law Judge

Alex M. Chintella, Administrative Law Judge
Office of Administrative Law Judges
Federal Maritime Commission
800 N. Capitol St., N.W.
Washington D.C. 20573-0001
judges@fmc.gov